Program Name: NGL Energy Partners Kraft Program

Program ID : PRG-1028215

Distributor: BEN E KEITH-DC-SAN ANTONIO
5805 KAEPA CT
SAN ANTONIO TX 78218

Effective Dates: January 1, 2015 through June 30, 2016

Price Type: Rebate

BEN E KEITH-DC-SAN ANTONIO,

We are pleased to confirm pricing information for orders placed between January 1, 2015 and June 30, 2016 for the below named operators only. During this time period, product sold to BEN E KEITH-DC-SAN ANTONIO for delivery to operators will receive the rebate type price to BEN E KEITH-DC-SAN ANTONIO for the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Myriamalie Buentello

Kraft Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0100032010	NGL ENERGY PARTNERS	3373 CHERRY CREEK NORTH DR STE 100 DENVER CO 80209

PRG-1028215 - Rebate

SCC#	Product Description	Rebate Pays To: Distributor
00210000164100	2.05Z EASY MAC CUP ORIGINAL 10	$0.50 / CS
00210000164125	2.05Z EZ MAC CUPS ORIG 10	$0.50 / CS
00210000504400	KR SS PRM M&C FRZ 36/7Z WHCHED	$1.00 / CS
00210006109400	PHILLY 100 .75Z CUP LT CRM CHS	$1.00 / CS
00210006111900	PHILLY 100/1Z CUP CRM CHS	$1.00 / CS
00210007044300	KR 36/7Z MAC&CHEESE FRZN PCH	$1.00 / CS
00210007044325	KR 36/7Z MAC&CHEESE FRZN PCH	$1.00 / CS
00210007045700	KR 36/10Z MAC&CHEESE FRZN PCH	$1.00 / CS
00210007045725	KR 36/10Z MAC&CHEESE FRZN PCH	$1.00 / CS
00210007268300	PHILLY 100/1Z CP STRW CRM CHS	$1.00 / CS
00210007268700	PHILLY 100/1Z GRD VEG CRM CHS	$1.00 / CS
00290000002500	PLTRS TM CAJUN 2Z/72	$0.50 / CS
00290000002600	PLTRS TM FRT NUT 2Z/72	$0.50 / CS
00290000002700	PLTRS TM NUT CHC 2Z/72	$0.50 / CS
00290000204500	2.25Z PLTRS OTG CHILI LIME 3/10PKS	$0.50 / CS
00290000770800	PLTRS 1.75Z/48 PNUTS SLTD	$0.50 / CS
00430000000600	CL 4/30/3.3Z OTG FRT PNCH	$2.00 / CS
00430000000611	CL 4/30/3.3Z OTG FRT PNCH	$2.00 / CS
00430000001500	CL 4/30/3Z OTG RASP LMNADE	$2.00 / CS
00430000001511	CL 4/30/3Z OTG RASP LMNADE	$2.00 / CS

SCC#	Product Description	Rebate Pays To: Distributor
00430000036200	CL OTG RASP GRN TEA 4/30	$2.00 / CS
00430000036211	CL OTG 4/30 RASP GRN TEA	$2.00 / CS
00430000050400	CL 4/30/4.8Z OTG SUNRISE ORNG	$2.00 / CS
00430000050411	CL 4/30/4.8Z OTG SUNRISE ORNG	$2.00 / CS
00430000075700	CL 4/30/2.4Z OTG ICED TEA	$2.00 / CS
00430000075711	CL 4/30/2.4Z OTG ICED TEA	$2.00 / CS
00430000079600	CL 4/30/5.1Z OTG LEMONADE	$2.00 / CS
00430000079611	CL 4/30/5.1Z OTG LEMONADE	$2.00 / CS
00430000079700	CL 4/30/2.7Z OTG PEACH TEA	$2.00 / CS
00430000079711	CL 4/30/2.7Z OTG PEACH TEA	$2.00 / CS
00430000079800	CL 4/30/2.4Z OTG RASPBERRY ICE	$2.00 / CS
00430000079811	CL 4/30/2.4Z OTG RASPBERRY ICE	$2.00 / CS
00430000092600	CL 4/30/3.9Z OTG ENRGY WLD STRW	$2.00 / CS
00430000092611	CL 4/30/3.9Z OTG ENRGY WLD STRW	$2.00 / CS
00430000420000	14.5Z JOPRRTESF VNLLA 6/4	$0.50 / CS
00430000420800	14.5Z JOPRRTESF CHOC 6/4	$0.50 / CS
00430000456800	12.5Z JOGRRTESF STWBY 6/4	$0.50 / CS
00430000457300	13.5Z JOG RTE ORNG 6/4PK	$0.50 / CS
00430000457400	13.5Z JOG RTE STRAW 6/4PK	$0.50 / CS
00430000460800	12.5Z JOGRRTESF LMNLM6/4	$0.50 / CS
00430000460900	12.5 JOGRRTESF ORNGE 6/4	$0.50 / CS
00430003902500	MH 112/1.4Z SPECIAL DEL CAF	$1.00 / CS
00430003902525	1.4Z X 112 MH SPEC DEL CF	$1.00 / CS
00430008275000	GRAB 'N SNK 4/12/3.5Z RTE PUD CHOC	$0.50 / CS
00430008275011	GRAB N' SNK 4/12/3.5Z RTE PUD CHOC	$0.50 / CS
00430008275100	GRAB 'N SNK 4/12/3.5Z RTE PUD VAN	$0.50 / CS
00430008275111	GRAB N' SNK 4/12/3.5Z RTE PUD VAN	$0.50 / CS
00430009392000	CL 24/16Z RTD LEMONADE	$1.00 / CS
00430009392025	CL 24/16Z RTD LEMONADE	$1.00 / CS
00430009392100	CL 24/16Z RTD SS RASPBERRY ICE	$1.00 / CS
00430009392125	CL 24/16Z RTD SS RASPBERRY ICE	$1.00 / CS
00430009392200	CL 24/16Z RTD SS ICED TEA	$1.00 / CS
00430009392225	CL 24/16Z RTD SS ICED TEA	$1.00 / CS
00430009392500	CL 24/16Z RTD SS STRWBRY KIWI	$1.00 / CS
00430009392525	CL 24/16Z RTD SS STRWBRY KIWI	$1.00 / CS

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.